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Case Number: 25STCV25131 Hearing Date: July 22, 2026 Dept: 729

Superior Court of California

County of Los Angeles

DEPARTMENT 729

TENTATIVE RULING

JOSELLY

PIVARAL,

vs.

STARBUCKS

CORPORATION, et al.

Case No.:

25STCV25131

Hearing Date: July 22, 2026

Defendant Starbucks Corporation's motion to compel arbitration of Plaintiff Jocelly Pivaral's claims in this action is granted. This case is stayed pending arbitration.

Defendant Jessica Nazarian's joinder to Defendant Starbucks Corporation's motion is granted.

The Court sets a non-appearance case review for July 22, 2027, at 8:30 a.m. The parties are directed to submit a joint statement five calendar days in advance, apprising the Court of the status of the arbitration.

Defendant Starbucks Corporation ("Starbucks") ("Moving Defendant") moves for an order compelling arbitration of all claims asserted by Plaintiff Jocelly Pivaral ("Pivaral") ("Plaintiff") and to stay the action pending arbitration. (Notice of Motion, pg. 2; C.C.P. §§1281, 1281.2; 9 U.S.C. §§1 et seq.)

Defendant Jessica Nazarian [erroneously sued as Jessica Nazarina] ("Nazarian") ("Joining Defendant") moves to join Moving Defendant's motion to compel arbitration and stay proceedings. (Notice Joinder, pg. 2.)

Evidentiary Objections

Plaintiff's 7/9/26 evidentiary objections to the Declaration of Shami Marangwanda ("Marangwanda") are overruled as to Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, and 13.

Plaintiff's 7/9/26 evidentiary objection to the Declaration of Nicole Golob ("Golob") is sustained as to No. 14.

Background

On August 27, 2025, Plaintiff filed his operative complaint ("Complaint") against Defendants alleging eight causes of action: (1) disability discrimination; (2) failure to engage in a good faith interactive process in violation of FEHA; (3) failure to provide reasonable accommodations; (4) failure to take all reasonable steps to prevent discrimination and/or retaliation; (5) retaliation in violation of FEHA (6) wrongful termination against public policy; (7) whistleblower retaliation in violation of Labor Code §1102.5; and (8) retaliation in violation of Government Code §12945.2.

On February 19, 2026, this Court denied Defendants' motion to compel arbitration without prejudice. (See 2/19/26 Nunc Pro Tunc Order.)

Moving Defendant filed the instant motion on May 4, 2026. Joining Defendant filed her joinder to the

motion on May 4, 2026. Plaintiff filed
his opposition on July 9, 2026. Moving
Defendant filed its reply on July 15, 2026.

Motion to Compel Arbitration

A. Arbitration Agreement

1.

The Arbitration
Agreement is enforceable

Federal

law provides for enforcement of this Arbitration Agreement. The Federal Arbitration Act, 9 U.S.C. §1, et seq. ("FAA"), establishes a strong federal policy in favor of arbitration of disputes where a written arbitration agreement exists. Section 2 of the FAA provides, in pertinent part that "[a] written provision . . . to settle by arbitration a controversy thereafter arising out of such contract . . . shall be valid, irrevocable, and enforceable." (9 U.S.C. §2.) The purpose of the FAA is to "reverse the longstanding judicial hostility to arbitration agreements." (Gilmer v. Interstate/Johnson Lane Corp. (1991) 500 U.S. 20, 24.) The FAA places arbitration agreements "on an equal footing with other contracts and [requires courts] to enforce them according to their terms." (AT&T Mobility, LLC v. Concepcion (2011) 563 U.S. 333, 339; see also Rent-A-Center West, Inc. v. Jackson (2010) 561 U.S. 63, 67 ["The FAA reflects the fundamental principle that arbitration is a matter of contract."].) The FAA will preempt not only a state law that "discriminat[es] on its face against arbitration," but also a state law that "covertly accomplishes the same objective by disfavoring contracts that (oh so coincidentally) have the defining features of arbitration agreements." (Kindred Nursing Centers Limited Partnership v. Clark (2017) 137 S.Ct. 1421, 1426.)

The

United States Supreme Court has specifically held that the FAA applies to employment contracts: "[A]s a matter of law the answer is clear. In the Federal Arbitration Act, Congress has instructed federal courts to enforce arbitration agreements according to their terms." (Epic Systems Corp. v. Lewis (2018) 138 S.Ct. 1612, 1619 [holding that employees must submit to arbitration agreements including those with collective action waivers].)

The

FAA restricts a court's inquiry related to compelling arbitration to two threshold questions: (1) whether there was an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute. (*Howsam v. Dean Witter Reynolds, Inc.* (2002) 537 U.S. 79, 84.) Here, both criteria are satisfied. First, Plaintiff agreed to arbitration when he entered into the Mutual Arbitration Agreement ("Arbitration Agreement") with Moving Defendant on August 27, 2021. (Decl. of Marangwanda ¶13, Exh. E.)

Moving

Defendant sufficiently authenticated Plaintiff's electronic signature. A proponent of an e-signature may authenticate the signature by introducing any "evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is," which includes circumstantial evidence. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1061; Evid. Code §1400; *People v. Calhoun* (2019) 38 Cal.App.5th 275, 313.) This includes "a showing of the efficacy of any security procedure applied to determine the person to which the . . . electronic signature was attributable." (*Espejo*, 246 Cal.App.4th at pg. 1061, citing Civ. Code §1633.9(a).)

Ruiz v. Moss Brothers Auto Group, Inc. explicitly states that there can be no agreement to arbitrate where the party compelling arbitration cannot authenticate the signature. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846.) "[A]ny writing must be authenticated before the writing or secondary evidence of its content may be received in evidence." (*Id.* at pg. 843, citing Evid. Code §1401; *People v. Valdez* (2011) 201 Cal.App.4th 1429, 1435.)

In *Ruiz*, while the defendants' declaration provided that Ruiz electronically signed the arbitration agreement, the declaration did not explain how defendants ascertained that the electronic signature on the agreement was the act of Ruiz. (*Ruiz*, 232 Cal.App.4th at pg. 843.) Ruiz had alleged that he did not recall signing the agreement, and, while the declarant stated that the agreement was "part of an employee acknowledgment form that 'is' presented to all Moss Bros. employees as part of a series of changes to the company's employee handbook, and each employee is required to log into the company's HR system, using his or her 'unique ID and password' to review and sign the employee acknowledgement form," the Ruiz Court held that the declarant had not "explain[ed] how, or upon what basis, [the declarant] inferred that the electronic signature on the [arbitration agreement] was 'the act of' Ruiz, . . . [which] left a critical gap in the evidence supporting the petition." (*Id.* at pg. 844)

Here,

Moving Defendant met its burden to provide admissible evidence that Plaintiff electronically signed the arbitration agreement. Moving Defendant's Director of Talent Acquisition, Shami Marangwanda ("Marangwanda") declares that after receiving an offer of employment, but before commencing work at Starbucks, Plaintiff was required to complete the online "Employee Onboarding" process on Taleo, a secure, password-protected system that requires users to authenticate their identity through unique login credentials before accessing or executing any documents. (See Decl. of Marangwanda ¶¶3, 10.) To complete this onboarding process, Plaintiff was required to sign into the Taleo system by entering his unique username and password on the same login screen he used to complete his application. (Decl. of Marangwanda ¶10.) After submitting his application, Plaintiff received an Acknowledgment of Receipt of his Application, which was sent to his email address, . (Decl. of Marangwanda ¶9, Exh. C.) The online onboarding process contains multiple additional tasks for the applicant to complete. (Decl. of Marangwanda ¶11.) After he accepted his offer, Plaintiff started the onboarding process, in which the first task was the "e-Consent" page. (Decl. of Marangwanda ¶11.) After logging into Taleo, he typed his name to electronically sign the "e-Consent" page, indicating his consent to receive and respond to information electronically, and to execute any documents requiring a signature with an e-signature. (See Decl. of Marangwanda ¶11, Exh. D.) Plaintiff was informed that he could contact Starbucks to receive paper copies of any and all electronic consents or authorizations he gave. (See Decl. of Marangwanda ¶11.) After consenting to receive and respond to notices in electronic form, Plaintiff was directed to the Mutual Arbitration Agreement task. (Decl. of Marangwanda ¶12.) To complete the Mutual Arbitration Agreement task, Plaintiff was required to read and sign the Mutual Arbitration Agreement as a condition of his employment. (Decl. of Marangwanda ¶13.) To acknowledge review and acceptance of Starbucks Mutual Arbitration Agreement, while logged in to Taleo, Plaintiff entered the last four digits of his social security number to confirm his electronic signature. (Decl. of Marangwanda ¶13.)

Plaintiff

signed the Agreement on August 27, 2021. (Decl. of Marangwanda ¶13, Exh. E.) Once Plaintiff electronically signed the document, an electronic record of his signature and IP address were entered and stored in the Taleo system. (Decl. of Marangwanda ¶14, Exh. F.) On August 27, 2021, Taleo automatically

generated and sent a confirmation email to Plaintiff's personal email address, which confirmed that Plaintiff signed the Agreement and completed the onboarding process. (Decl. of Marangwanda ¶16, Exh. G.) After Plaintiff completed the onboarding process and electronically signed the Mutual Arbitration Agreement on August 27, 2021, he began working as a Store Manager at Starbucks No. 29347 located at 429 Los Cerritos Center, Cerritos, California on September 13, 2021. (Decl. of Marangwanda ¶17.)

Second, the agreement covers Plaintiff's claims asserted in his Complaint. The Agreement defines "Covered Claims" as "those brought under any statute, local ordinance, or common law relating to my employment, including those concerning any element of compensation, harassment, discrimination, retaliation, recovery of bonus or relocation benefits, leaves of absence, accommodations, or termination of employment. (Decl. of Marangwanda ¶13, Exh. E.)

California law also favors arbitration of the instant case. The California Arbitration Act ("CAA"), codified at C.C.P. §1281 et seq., provides, "A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract." (C.C.P. §1281; see also *Grafton Partners L.P. v. Superior Court* (2005) 36 Cal.4th 944, 955 ["[U]nlike predispute jury waivers, predispute arbitration agreements are specifically authorized by statute."].)

"California law, like federal law, favors enforcement of valid arbitration agreements." (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 97, 99.) The public policy in favor of arbitration is so strong that California courts have held that an employee is "bound by the provisions of the [arbitration] agreement regardless of whether [he] read it or [was] aware of the arbitration clause when [he] signed the document." (*Brookwood v. Bank of America* (1996) 45 Cal.App.4th 1667, citing *Macaulay v. Norlander* (1992) 12 Cal.App.4th 1.) The only prerequisite for a court to order arbitration is a determination that the parties have entered into an agreement to arbitrate the dispute. (*United Transportation Union v. Southern California Rapid Transit District* (1992) 7 Cal.App.4th 804, 808.) Thus, arbitration must be ordered "unless the agreement clearly does not apply to the dispute in

question.” (Vianna v. Doctors’
Management Co. (1994) 27 Cal.App.4th 1186, 1189.)

Here,
Plaintiff entered into the Arbitration Agreement with Moving Defendant on
August 27, 2021. (Decl. of Marangwanda ¶13, Exh. E.)

Plaintiff’s
first argument in opposition that the FAA does not apply on the basis that his
employment has no relationship to interstate commerce is unavailing. (Opposition, pg. 3.) The Arbitration Agreement
explicitly states
that the Arbitration Agreement “shall be enforceable under and subject to the
Federal Arbitration Act, 9 U.S.C. Sections 1 et. seq.” (Decl.
of Marangwanda ¶13, Exh. E.)

Plaintiff’s second argument in opposition
that the Agreement fails to lack of mutual consideration is similarly
unavailing. Plaintiff declares that he “does
not recall” being informed that submitting an application constituted agreement
arbitrate any claims arising out of his employment. (Decl. of Pivaral ¶2.) Plaintiff does not declare that he did not
sign the Arbitration Agreement, only that he does not recall reading the
documents and the terms of the Agreement, or that “the final page contains my
name typed in a format that does not resemble [his] signature,” which strains
credulity, seeing that his declaration also contains an electronic signature also
signed as “Jocelly Pivaral.” (Compare
Decl. of Marangwanda ¶13, Exh. E at pg. 3 to Decl. of Pivaral at pg. 3.) Plaintiff does not deny signing the document,
only that, at present, he does not remember signing the document, which does
not demonstrate lack of assent to the Agreement at the time he executed it.

Based
on the foregoing, Moving Defendant met its burden to prove the existence of a
valid Arbitration Agreement with Plaintiff that is enforceable by Moving Defendant.

2.
Covered Claims

The
Arbitration Agreement states,

“Covered

Claims” are those brought under any statute, local ordinance, or common law relating to my employment, including those concerning any element of compensation, harassment, discrimination, retaliation, recovery of bonus or relocation benefits, leaves of absence, accommodations, or termination of employment.

. .
.

Claims

Not Covered by this Agreement Claims excluded from this Agreement are: (a) claims for workers’ compensation, unemployment, or other benefits under a plan or program that provides its own process for dispute resolution; (b) claims for which this Agreement would be invalid as a matter of law; (c) actions to enforce this Agreement, compel arbitration, or enforce or vacate an arbitrator’s award under this Agreement; (d) claims asserted on my behalf by another individual if that claim was the subject of a motion to certify a class or collective action and that motion was filed before I entered into this Agreement; and (e) a claim or charge filed with a federal, state, or local administrative agency such as the Equal Employment Opportunity Commission, National Labor Relations Board, Department of Labor, Department of Fair Employment and Housing, the California Labor Commissioner, or other similar agency, though I am giving up the opportunity to recover monetary amounts from any such governmental agency related claim and instead am able to pursue a claim for monetary amounts through arbitration under this Agreement.

(Decl. of Marangwanda ¶13, Exh. E.)

Plaintiff’s claims asserted in his Complaint for violations of FEHA, the Labor Code, and wrongful termination in violation of public policy fit squarely within the category of “Covered Claims” and are not inclusive of “Claims Not Covered by [the Arbitration] Agreement.”

B.

Unconscionability

“[P]rocedural

and substantive unconscionability must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.” (Armendariz, 24 Cal.4th at pg. 102.) Courts invoke a

sliding scale which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves, i.e., the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to conclude that the term is unenforceable, and vice versa. (Id., at pg. 114.) Plaintiff bears the burden of proving that the provision at issue is both procedurally and substantively unconscionable.

1.

Procedural

Unconscionability

Plaintiff

argues the Arbitration Agreement is procedurally unconscionable because the Arbitration Agreement is a contract of adhesion and therefore oppressive. (Opposition, pgs. 7-9.)

“Procedural

unconscionability focuses on the elements of oppression and surprise.

[Citations] ‘Oppression arises from an inequality of bargaining power which results in no real negotiation and an absence of meaningful choice . . .

Surprise involves the extent to which the terms of the bargain are hidden in a ‘prolix printed form’ drafted by a party in a superior bargaining position.’

[Citations.]” (Roman v. Superior

Court (2009) 172 Cal.App.4th 1462, 1469.)

Procedural

unconscionability “focuses on the unequal bargaining positions and hidden terms common in the context of adhesion contracts.”

(24 Hour Fitness, Inc. v. Superior Court (1998) 66 Cal.App.4th

1199, 1212-1213.) Although standard

employment agreements offered on a “take it or leave it” basis are generally considered contracts of adhesion, this alone is not enough to equate to unconscionability. (See Graham

v. Scissor-Tail, Inc. (1981) 28 Cal.3d 807, 817-819 [“To describe a contract as adhesive in character is not to indicate its legal effect. It is, rather, ‘the beginning and not the end of the analysis insofar as enforceability of its terms are concerned.’”].)

Adhesion contracts are “fully enforceable . . . unless certain other

factors are present which under established legal rules—legislative or judicial—operate to render it otherwise.” (Id. at pgs. 819-820; Harper v. Ultimo (2003) 113 Cal.App.4th 1402, 1409 [adhesion alone does not render arbitration agreements unconscionable]; see also Armendariz, 24 Cal.4th at 114; Lagatree v. Luce, Forward, Hamilton & Scripps, LLP (1999) 74 Cal.App.4th 1105 [discussing many authorities upholding arbitration agreements contained in adhesion contracts].)

Plaintiff’s

argument in opposition that he was required to sign the Agreement as a condition of his employment is unavailing.

The adhesive nature of arbitration agreements in the employment context alone does not render an agreement unenforceable. (Lagatree, 74 Cal.App.4th at pg. 1127 [“[C]ases uniformly agree that a compulsory predispute arbitration agreement is not rendered unenforceable just because it is required as a condition of employment or offered on a ‘take it or leave it’ basis.”]; Armendariz, 24 Cal. 4th at pg. 113 [holding that the requirement that the employee sign an arbitration agreement may contain some elements of procedural unconscionability, but that, in itself, does not invalidate the arbitration agreement]; Ajamian v. CantorCO2e, LP (2012) 203 Cal.App.4th 771, 796 [“Where there is no other indication of oppression or surprise, the degree of procedural unconscionability of an adhesion agreement is low[.]”].)

Here,

there is no evidence before the Court that Plaintiff was pressured into signing the Agreement, either by time or the influence of an individual, or that Plaintiff did not have the opportunity to seek counsel before signing the document. Plaintiff executed the document electronically on Taleo and was given the opportunity to review the information he submitted in his application prior to submission. (See Decl. of Marangwanda ¶19 [“This disclosure is made at the top of the confirmation page and is in the same size typeface and font as the rest of the disclosure. To move on to the next page, Plaintiff was required to acknowledge his review and approval of the disclosures on the “Application Confirmation” page by entering his full name, then clicking the “Continue” button. At this juncture, Plaintiff had the option to cancel his application if he did not wish to proceed. Plaintiff did not cancel his application; he completed it. To complete his application, Plaintiff was required to review the information he provided before final submission and submit his application.”].) Plaintiff’s decision to forgo meeting with an attorney to discuss the Arbitration Agreement

does not render the agreement oppressive.

Moving Defendant's failure to include a clause in the Arbitration

Agreement indicating that Plaintiff could consult an attorney prior to

executing the form demonstrates at most, minimal procedural unconscionability. (See *Oto, LLC v. Kho* (2019) 8 Cal.5th 111, 126-127.)

Plaintiff

has failed to demonstrate that the Arbitration Agreement is procedurally unconscionable to a high degree, and is at most, minimally procedurally unconscionable. (*Hicks v. Superior*

Court (2004) 115 Cal.App.4th 77, 91.)

Based on the foregoing, the Court finds the Arbitration Agreement is not so oppressive to render the agreement procedurally unconscionable.

2.

Substantive

Unconscionability

Plaintiff

argues the Arbitration Agreement is substantively unconscionable because it (1) lacks mutuality; (2) violates the EFAA; (3) waives Plaintiff's right to file class actions, collective actions, and representative actions; (4) does not provide for adequate discovery; and (5) limits Plaintiff's remedies otherwise available under FEHA. (Opposition, pgs. 9-10.)

"Substantive

unconscionability focuses on the actual terms of the agreement and evaluates whether they create 'overly harsh' or "one-sided' results' [Citations] that is, whether contractual provisions reallocate risks in an objectively unreasonable or unexpected manner.

[Citation] Substantive unconscionability 'may take various forms,' but typically is found in the employment context when the arbitration agreement is 'one-sided' in favor of the employer without sufficient justification, for example, when 'the employee's claims against the employer, but not the employer's claims against the employee, are subject to arbitration.'

[Citations]." (Roman, 172

Cal.App.4th at pgs. 1469-1470.) In

determining whether an arbitration agreement is unconscionable, the Court considers whether the agreement: (1) provides for a neutral arbitrator; (2)

provides for reasonable discovery; (3) requires a written award; (4) provides for the same remedies that otherwise would be available in court; and (5) does not require employees to bear costs unique to arbitration. (See *Armendariz*, 24 Cal.4th at pgs. 102-103.)

First,

Plaintiff's argument that the Arbitration Agreement lacks mutuality because it requires Plaintiff to submit the claims that an employee is likely to bring, yet "any of Defendants' potential lawsuits, such as those that implicate trade secrets, or a breach of confidentiality, are not covered by the Agreement," is unavailing. (Opposition, pg. 9.) The express language of the agreement confers a reciprocal obligation amongst the parties to arbitrate matters related to Plaintiff's employment. (Decl. of Marangwanda ¶13, Exh. E.)

The language in the Arbitration

Agreement does not afford Moving Defendant a unilateral right to compel arbitration while allowing it to pursue claims outside of arbitration. Moreover, the allocation of the class-waiver enforceability question to a court is neutral to both parties and is not a one-sided carve-out as Plaintiff suggests. The agreement's language grants a court authority to determine the enforceability of a class or representative claim equally to both parties, not just Moving Defendant. (Decl. of Marangwanda ¶13, Exh. E.)

Further,

under the FAA, employers are entitled to enforce arbitration agreements insofar as they mandate arbitration of individual PAGA claims. (See *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639, 662 ["We hold that the FAA preempts the rule of *Iskanian* insofar as it precludes division of PAGA actions into individual and non-individual claims through an agreement to arbitrate," and therefore "Viking [River Cruises] is entitled to compel arbitration of [plaintiff's] individual [PAGA] claim."]; see also *Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, 1118-1119 ["Viking River requires enforcement of agreements to arbitrate a PAGA plaintiff's individual claims if the agreement is covered by the FAA"].) Plaintiff's argument regarding PAGA is a non-sequitur, given that Plaintiff does not assert a PAGA claim and does not argue that he will move for leave to amend to add a PAGA claim. In the event Plaintiff seeks to pursue a PAGA claim, hypothetically, he would still be entitled to pursue a viable representative PAGA claim in Court following the resolution of Plaintiff's arbitration of an individual claim arising from his employment.

Plaintiff's

argument pertaining to the EFAA is similarly unavailing, given that Plaintiff's complaint does not assert any cause of action related to sexual, gender, or pregnancy-based harassment. Had

Plaintiff asserted a viable claim subject to the EFAA, this Court would have undertaken the appropriate analysis of the Agreement. Plaintiff's suggestion that the Agreement at issue, which predates the enactment of the EFAA on March 3, 2022, to include an exception to the EFAA is a frivolous argument.

Plaintiff's

argument that the Agreement does not provide adequate discovery is also unavailing. Under Armendariz, an arbitration agreement must provide for adequate discovery, which means "discovery sufficient to adequately arbitrate [the parties'] statutory claim[s], including access to essential documents and witnesses, as determined by the arbitrator(s)." (24 Cal.4th at pgs. 102-106.)

The Armendariz Court recognized that an arbitration agreement is lawful if, among other things, it provides for "more than minimal discovery." (Id.)

Here, the Agreement expressly provides:

(i)

Each party shall be entitled to 25 interrogatories in a form consistent with Rule 33 of the Federal Rules of Civil Procedure ("FRCP").

(ii)

Each party shall be entitled to only 25 requests for production of documents in a form consistent with Rule 34 of the FRCP.

(iii)

Each party shall be entitled a maximum of two eight-hour days of depositions of witnesses in a form consistent with Rule 30 of the FRCP.

Each

party shall be entitled to one expert deposition, if necessary, in a form consistent with Rules 26 and 30 of the FRCP.

(Decl.
of Marangwanda ¶13, Exh. E at §d.)

The
Agreement further provides that “[t]he Arbitrator shall decide all disputes
related to discovery and may allow additional discovery upon a showing of
substantial need by either party or upon a showing of an inability to pursue or
defend certain claims.” (Decl. of Marangwanda
¶13, Exh. E at §e(iii).) Here, the
Agreement expressly provides for access to discovery including up to 25
interrogatories, 25 requests for production, two eight-hour days of depositions
of witnesses, and one expert deposition. (Decl. of Marangwanda ¶13, Exh. E at §d.)
Further, if a party believes that it requires additional discovery, the
Agreement authorizes the arbitrator to allow for such additional discovery upon
the showing of need. (Decl. of Marangwanda
¶13, Exh. E at §e(iii); accord *Sanchez v. Carmax Auto Superstores*
California, LLC (2012) 24 Cal.App.4th 398, 404 [upholding arbitration
agreement that provided for less discovery than the California Code of Civil
Procedure because it also provided the parties with the right to apply for additional
discovery based on “substantial need.”]; *Roman*, 172 Cal.App.4th at pg.
1475 [stating adequate discovery is available where “[t]he arbitrator shall
have the authority to order such discovery, by way of deposition, interrogatory,
document production, or otherwise, as the arbitrator considers necessary to a
full and fair exploration of the issues in dispute, consistent with the
expedited nature of arbitration”].) By
allowing various forms of discovery and arbitrator discretion to grant
additional discovery, the Agreement clearly provides for “more than minimal
discovery” and, therefore, satisfies the requirements of *Armendariz*’s
discovery element.

Finally,
Plaintiff’s argument that the Arbitration Agreement limits his remedies under
FEHA is unavailing and contradicted by the express terms of the agreement: the
Agreement states that the arbitrator “shall have the same authority to order
remedies (e.g., emotional distress damages, punitive damages, equitable relief,
etc.) as would a court of competent jurisdiction.” (Decl. of Marangwanda ¶13, Exh. E at §e(iv).)
Therefore, Plaintiff may seek all
available remedies under California law.

Based

on the evidence before the Court, the terms of the Arbitration Agreement do not create overly harsh or one-sided results, satisfying the requirements for a substantively conscionable agreement.

Based

on the foregoing, the Court finds the Arbitration Agreement is not substantively unconscionable.

C.

Stay of Current

Action

The

FAA mandates a stay. Where an action

involves “any issue referable to arbitration under an agreement in writing,”

the court “shall on application of one of the parties stay the trial of the

action until such arbitration has been had.” (9 U.S.C. §3.) The statutory directive is not discretionary

as to claims subject to arbitration. Plaintiff’s claims against all Defendants

arise from the operative facts. Because the arbitration will address the core

factual and legal issues underlying the action, a stay of the entire matter pending

completion of arbitration would serve judicial efficiency and avoid

inconsistent results.

Accordingly,

this case is stayed pending arbitration.

D.

Conclusion

Moving Defendant’s

motion to compel arbitration is granted.

Joining

Defendant’s joinder to Moving Defendant’s motion is granted.

The case is

stayed pending arbitration. The Court sets a non-appearance case review for July

22, 2027, at 8:30 a.m. The parties are

directed to submit a joint statement five calendar days in advance, apprising

the Court of the status of the arbitration.

Moving Party to
give notice.

Dated: July _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court